

NON - DISCLOSURE AGREEMENT
(Apprenticeship Program)

This Non-Disclosure Agreement (hereinafter referred to as the "NDA") is made and entered into this 2nd Day of June, in Butuan City, by and between:

The DEPARTMENT OF INFORMATION AND COMMUNICATIONS TECHNOLOGY ("DICT"), a government agency duly organized and existing under and by virtue of Republic Act (R.A.) No. 10844, otherwise known as the "Department of Information and Communications Technology Act of 2015," with principal office at DICT Building, C.P. Garcia Avenue, Diliman, Quezon City, hereinafter referred to as the "DICT", and represented herein by its Director IV, Mario P. Cuñado; (Referred to as the RECEIVING PARTY)

-and-

Lance G. Montengro, On-the-Job-Trainee of Department of Information and Communications Technology – (OFFICE) with address at B3L4 Shangrila 2 Subdivision, Brgy. Libertad, Butuan City; Referred to as the DISCLOSING PARTY

The parties shall collectively be referred to as the "Parties" and referred to individually as either the "First/ Receiving Party" or "Second/Disclosing Party", as the case may be.

1. Purpose. – This NDA is for the purpose of preventing the unauthorized disclosure of Confidential Information relating to the (Project/Program) ("hereinafter referred to as the "Project/Program") of DICT. The Receiving Party shall treat all Confidential Information received with utmost confidentiality and prevent any unauthorized disclosure thereof.

2. Effectivity. – This obligation of confidentiality and restricted use shall survive the Receiving Party's engagement with the DICT, and will remain in full force and effect without any limitation as to time.

3. Confidential Information. – For purposes of this NDA, "Confidential Information" shall include all information, data, and related documentation, in whatever form provided, recorded, or unrecorded, relating to the Project or in connection with the implementation, development, and operation thereof.

Confidential Information shall not include the following:

- a) Information which has been or becomes now in the future published in the public domain without breach of this NDA or breach of a similar agreement by a third party;
- b) Prior to disclosure hereunder, is properly within the legitimate possession of the Receiving Party, which fact can be proven or verified by independent evidence;
- c) Subsequent to disclosure hereunder, is lawfully received from a third-party having rights therein without restriction on the third party's or the Receiving Party's right to disseminate the information and without notice of any restriction against its further disclosure;
- d) Information that is independently developed by the Receiving Party through persons who have not had, either directly or indirectly, access to or knowledge of such information which can be verified by independent evidence; or
- e) Information that is disclosed with the written approval of the other party or after the applicable period of confidentiality.

Notwithstanding the foregoing, in case of doubt as to whether the particular information is confidential, the Receiving Party shall treat all information received in connection with the Project as Confidential Information and subject to the confidentiality required under this NDA, Republic Act No. 10173, also known as the "Data Privacy Act of 2012," its implementing rules

and regulations (IRR), and the relevant issuances of the National Privacy Commission relating to the protection, handling, and transfer and/or sharing of personal data between and among the participating agencies.

4. Duties and Responsibilities of the Parties. – The Receiving Party and its respective personnel who are given access to Confidential Information undertake to:

- a) Use Confidential Information solely for the implementation, development, and operation of the Project, or purpose for which it was furnished;
- b) Treat Confidential Information with utmost confidence and protection;
- c) Hold the Confidential Information (regardless of whether it is specifically marked as confidential or not) with confidentiality, protect it adequately and retain it in secure place with access limited only to the authorized individuals who need to know such information for purposes of implementing, developing, or operating the Project;
- d) Restrict disclosure of the Confidential Information solely to those persons with a need to know and not disclose it to any other person;
- e) Advise those persons of, and ensure of their compliance with, their obligation with respect to the Confidential Information;
- f) Implement and enforce reasonable security measures to comply with the obligations under this NDA or as may be further specified by the DICT;
- g) Not reproduce or otherwise duplicate the Confidential Information, except with the prior written notice to and consent from the DICT;
- h) Not use the Confidential Information for its own benefit, commercial or otherwise, or that of any other person directly or indirectly in any manner whatsoever;
- i) To immediately return to the DICT any and all records, notes, and other written, printed, or tangible materials in its possession pertaining to Confidential Information upon the DICT's request; and
- j) Use the Confidential Information only strictly for the purpose set forth herein and no other purpose except as may otherwise be specifically agreed upon in writing.

5. Ownership of the Confidential Information. – All Confidential Information, unless otherwise specified in writing, shall remain the sole and exclusive property of the DICT, and shall only be used by Receiving Party for the purpose intended, except as maybe required by applicable laws of legal process.

6. Return and Destruction of Copies of Confidential Information. – All Confidential Information, including but not limited to copies, summaries, excerpts, extracts or other reproduction thereof, shall be returned to the DICT or destroyed after the Receiving Party's need for it has expired or upon request of the DICT, and certify that the same have been destroyed.

Further, in any event, and at any time the Receiving Party ceases to have an active interest and/or participation to the Project, the Receiving Party shall immediately return to the DICT all copies of Confidential Information in its possession without retaining any copies or excerpts thereof.

7. Accuracy and Completeness of the Confidential Information. – The DICT makes no representation or warranty as to the accuracy or completeness of the Confidential Information and the DICT and its officials, employees, and personnel shall have no liability to the Receiving Party for any loss or damage resulting from any use of or reliance on any of the Confidential Information, except as otherwise provided in a formal written agreement executed between the parties.

8. Severability. – If a court finds any provision of this NDA invalid or unenforceable, the remainder of this NDA shall be interpreted so as to give effect to the intent of the Parties herein.

9. Repealing Clause. – This NDA expresses the complete understanding of the Parties with respect to the subject matter and supersedes all prior proposals, agreements, representations, and understandings.

10. Amendments. – The provisions of this NDA shall, at all times, be subject to existing and subsequent issuances of the DICT, all amendments and/or modifications the Parties may

subsequently agree upon, and directives from duly authorized government regulatory bodies in the exercise of their jurisdiction. Any modification, revision, or amendment hereto agreed upon by the Parties shall become valid and binding only when the same is in writing and signed by both Parties.

11. Assignment of Rights – The rights and obligations of both Parties under this NDA shall be binding upon their respective successors and assigns. Neither Party may assign its rights to a third party without the written permission of the other Party.

12. Indemnity – Both Parties shall hold each other free and harmless from any damage or liability that may arise from or occasioned by their ordinary performance and exercise of their rights and obligations under this NDA, except when such damage or liability is attributable to the gross negligence or willful misconduct of a Party or any of its officers, representatives, or employees. Provided, however, that each Party shall be liable for damage to property or injury to persons caused solely by its negligence or fault or by any defect in or breakage of its equipment or connected apparatus or to any failure of the same to function and solely attributed to its facilities.

13. Dispute Resolution. – Any conflict, dispute or controversy arising out of or in connection with this NDA or the interpretation, construction, performance, or breach of any provision hereof shall be initially settled amicably within thirty (30) days, through authorized representatives of the Parties. Either Party may initiate amicable discussions by sending a written notice to the other Party, specifying the alleged dispute and the proposed schedule thereof, which shall not be more than five (5) days from the date of notice.

If the parties fail to reach an amicable settlement within thirty (30) days from written notice, any conflict, dispute or controversy arising out of or in connection with this NDA or the interpretation, construction, performance, or breach of any provision hereof shall be finally settled through arbitration and shall be governed by, construed, and enforced in accordance with the laws of the Philippines. The arbitration shall be conducted by a sole arbitrator, to be appointed by the Secretary of the Department of Justice Philippines. The place of arbitration shall be the Philippines.

14. Non-Waiver of Rights. – Any failure to enforce at any time, or for any period of time, the provisions of this NDA, shall not be deemed or construed as a waiver of such provisions or of the right of such Party thereafter to enforce each and every provision.

IN WITNESS WHEREOF, the parties have hereunto affixed their signatures on this agreement in the place and date abovementioned.

DEPARTMENT OF INFORMATION AND
COMMUNICATIONS TECHNOLOGY

DICT-(OFFICE) INTERN

Mario P. Cuñado

Lance S. Montenegro

(Name)

(Name)

(Office, Director)

Witnessed by:

ACKNOWLEDGMENT

REPUBLIC OF THE PHILIPPINES)
CITY/MUNICIPALITY OF _____) S.S.

At the above stated place, on the ____ day of _____ 2025 before me personally appeared:

Name	Government Issued ID No. Expiry
Mario P Cuñado	
Lance G. Montenegro	

known to me the same persons who executed the foregoing instrument and acknowledged the same to be their free and voluntary acts and deeds as well as those of the corporation and instrumentality of the Government herein represented.

Said instrument refers to a Non-Disclosure Agreement consisting of 4 pages including this page whereon the Acknowledgment is written, signed by the Parties and their witnesses on the signature page hereof, and initiated on the other pages and sealed with the notary's seal.

NOTARY PUBLIC

Doc. No. ____;
Page No. ____;
Book No. ____;
Series of 2025.